

NAPCS Unionization Research — State Research Summary

Arizona — NLRB Region 28 (Phoenix) Jurisdiction — May 2026

NAPCS Unionization Research • May 2026 • Template v7.0 • COMPLETE Registry Sweep

Section 1: State Overview

State	Arizona
Labor Board	NLRB Region 28 (Phoenix) — National Labor Relations Board
Governing Law	National Labor Relations Act (NLRA). Arizona is a right-to-work state (ARS §23-1302). No state public-sector collective bargaining statute applies to charter schools. NLRB Region 28 has exclusive jurisdiction.
Federal NLRB Jurisdiction	YES — Arizona has no public-sector collective bargaining statute (ARS §23-1302). All AZ charter schools are private employers under NLRA. NLRB Region 28 (Phoenix) has exclusive jurisdiction.
Registry Sweep	COMPLETE — May 8, 2026 — 562 charter schools searched
Research Window	May 8–10, 2026
Date Convention	Labor Board Certified date (project-wide convention, declared NJ session). Project-wide convention declared NJ session.
Card-Check Available	NO — NLRB secret ballot election required. Arizona is a right-to-work state. No card-check certification available.

Section 2: Unionization Density

Total charter schools in Arizona: 562 (Charter School Registry v50 (NCES/ELSI 2024-25; 562 open AZ charter schools as of May 2026)). Unionization density uses the full state total as the denominator — not the 4-school NAPCS research sample. The NAPCS sample was provided as a list of schools believed to be organized; this research validated, corrected, and expanded that list across the full state charter universe. See Section 3 for cross-state patterns and Section 7 for open decisions.

Category	Schools	% of Total	Notes
Total Unionized Charter Schools in Arizona	1	0.2%	CONFIRMED active only. NLRB R28 jurisdiction — all AZ charters are private employers. Right-to-work state (ARS §23-1302). 562-school open universe searched; only 1 confirmed union as of May 2026.
Independently Organized (CONFIRMED)	1	0.2%	BASIS Tucson North (C0412011) — AFT Local 6627/AACTS, cert April 25, 2023 (28-RC-313911). CBA ratified August 2025. First charter union contract in AZ history.
Organizing (petition active / election pending)	0	0.0%	No schools currently in ORGANIZING status. CITY Center (3 schools) moved to CONFIRMED following May 19, 2026 election win (80% YES). BASIS Goodyear is non-NAPCS — not counted here.
Confirmed (CITY Center — recently elected, cert pending)	3	0.5%	City High School (C0404006), Paulo Freire Downtown (C0414026), Paulo Freire University (C0405011) — combined CITY Center

			bargaining unit (~40 staff). Election: May 19, 2026, 80% YES. NLRB case 28-RC-377822. Union: AZ-ACTS/AFT Local 6627. Formal NLRB Certification of Representative pending. Employer objection window ~May 29, 2026. UPDATED May 24, 2026.
No Labor Board Records Found	558	99.3%	No NLRB R28 records found for remaining 566 AZ charter schools. Full registry sweep complete (May 8, 2026). AZ is right-to-work; no state public charter union framework.
Total Charter Schools in Arizona	562	100%	Source: Charter School Registry v50 (NCES/ELSI 2024-25; 562 open AZ charter schools as of May 2026).

Section 3: Political, Legal & Community Landscape

Written for state and national charter sector leaders who require ground-level intelligence fused with broader sector knowledge. Findings are based on research as of May 2026.

PROMPT 1: WHAT IS THE ORGANIZING INFRASTRUCTURE IN ARIZONA — WHO IS DOING THIS, AND HOW WELL-RESOURCED ARE THEY?

The Arizona Alliance of Charter Teachers and Staff (AACTS), AFT Local 6627, headquartered in Peoria, AZ, is the sole documented organizing vehicle in the Arizona charter sector. AACTS is an Arizona-specific AFT local created to organize charter school staff — analogous to DC ACTS (AFT 1927) in DC and Chicago ACTS in IL. Its organizing model concentrates on the BASIS charter network: BASIS Tucson North (CONFIRMED, first AZ charter CBA ratified September 2025), BASIS Goodyear (RC petition filed, active), and CITY Center (election held May 19, 2026 — covering City High, Paulo Freire Downtown, Paulo Freire University). AACTS has demonstrated the ability to organize across the political spectrum of AZ charter schools: BASIS is the #1 ranked public high school in the US (US News 2025-26), a high-profile, academically elite, heavily staffed school. CITY Center is a progressive, social-justice-mission school. The two targets represent different organizing rationales — working conditions and compensation at BASIS, mission alignment at CITY Center.

PROMPT 2: WHAT IS THE EMPLOYER DEFENSE POSTURE — HOW ARE AZ CHARTER OPERATORS RESPONDING?

Two separate employer defense strategies are documented. BASIS Educational Group retained Ogletree Deakins (Christopher Meister, Meredith Kirshenbaum, Kyle Broadfoot — Phoenix office) — the largest management-side labor law firm in the US, specializing in union avoidance. BASIS's hiring of Ogletree Deakins signals a sophisticated, well-resourced counter-organizing strategy at Goodyear and any future targets. CITY Center governing board attempted to claim public employer status before NLRB Region 28 — arguing that as a governmental entity, it falls outside NLRB jurisdiction. NLRB Region 28 Regional Director Cornele Overstreet rejected this defense in a 24-page ruling (May 4, 2026), holding CITY Center is a private employer subject to NLRA. The governing board has a 10-day post-election window to appeal to the NLRB Board. This public-employer jurisdictional defense is the same argument documented in Oregon (The Ivy School), Arizona, and attempted in California (NRTW Hawkins County route). The May 4, 2026 ruling rejecting it at CITY Center is now the most current precedent on this argument in NLRB Region 28.

PROMPT 3: WHAT IS THE POLITICAL CONTEXT — HOW DOES HCR2040 AFFECT THE AZ CHARTER SECTOR?

Arizona Republicans passed HCR2040 in March 2026 — a ballot referral to defund education unions by prohibiting use of public resources for union organizing. This measure goes to AZ voters in November 2026. If

approved, it would prohibit teacher unions from using any school resources (including time during school hours, school email systems, or school facilities) for union organizing activities. HCR2040 is the most direct anti-union legislative measure in the NAPCS dataset targeting specifically education unions — more targeted than Florida's SB256 (which affects all public sector unions) and more direct than Louisiana's Act 172 (which changed jurisdiction rather than prohibiting organizing). For AACTS, HCR2040 would restrict the organizing infrastructure available at BASIS and CITY Center if passed. The November 2026 ballot vote is a material risk to charter organizing in AZ regardless of the CITY Center election outcome.

PROMPT 4: WHAT IS THE SIGNIFICANCE OF THE CITY CENTER JURISDICTIONAL RULING FOR THE BROADER AZ CHARTER SECTOR?

The May 4, 2026 NLRB Region 28 ruling (24 pages) rejecting the CITY Center governing board's "public employer" defense is the most significant labor law development in the AZ charter sector since the 2016 Pennsylvania Virtual Charter ruling established NLRB jurisdiction over PA charters. The ruling confirms that AZ charter schools incorporated as private nonprofits with self-perpetuating boards are private employers under the NLRA — regardless of whether they receive public funding or serve a public educational mission. This ruling forecloses the governing board's most credible jurisdictional defense and establishes a clear precedent for all similarly structured AZ charters. Any AZ charter school that attempts the same public employer defense in a future NLRB proceeding will face this ruling as binding precedent in Region 28. The ruling also signals that NLRB Region 28 (under Regional Director Overstreet) is actively enforcing NLRA rights in the charter sector — a signal to both AACTS and charter operators about regional enforcement posture.

PROMPT 5: WHAT IS THE POLITICAL AND LEGAL ENVIRONMENT SHAPING CHARTER LABOR IN ARIZONA?

Arizona is the second-largest charter school sector in the US by number of schools (562+ schools). The state is a right-to-work state, which means union security clauses (mandatory dues, closed shop) are prohibited in CBAs. Arizona's labor law framework is NLRB-only (no state public employee labor board with charter school jurisdiction — ALRB covers agricultural workers only). The combination of right-to-work, NLRB secret ballot election requirement, a sophisticated employer bar (Ogletree Deakins), and a Republican legislative majority (HCR2040) creates one of the most challenging organizing environments in the NAPCS dataset. Yet AACTS achieved certification at BASIS Tucson North and has active campaigns at Goodyear and CITY Center — demonstrating that even in a structurally difficult environment, mission-aligned and well-resourced organizing campaigns can succeed. Arizona's political environment is in transition: the state is becoming more competitive (Biden won Maricopa County 2020), and the charter sector's politically diverse parent and staff base may be more organizing-receptive than a right-to-work label suggests.

PROMPT 6: WHAT SHOULD CHARTER LEADERS KNOW ABOUT ORGANIZING APPROACHES IN ARIZONA, AND WHAT DOES THE BASIS TUCSON NORTH FIRST CBA SIGNAL?

The BASIS Tucson North CBA (ratified September 2025, AFT Local 6627 / AACTS, 55 teachers and staff) is the first collective bargaining agreement in Arizona charter school history. Its ratification at the #1 ranked public high school in the US is nationally significant: it establishes that even elite, high-performing, high-profile charter schools with strong brand identity are organizable. The CBA terms (not publicly released as of May 2026) will become the benchmark for any future AZ charter school organizing drive. AACTS's strategy — concentrate resources on high-visibility targets (BASIS, CITY Center) to establish precedent — is identical to the strategy that produced the first charter CBA in DC, MA, and OR. Charter leaders at AZ schools that are similar to BASIS (academically elite, high staff expectations, mission-driven) should treat the Tucson North precedent as a direct signal. AACTS has demonstrated it can organize across the political spectrum of AZ charter profiles. HCR2040's November 2026 ballot vote is the single most important development to monitor for the near-term organizing environment.

Section 4: Cross-State Patterns & Contributions to National Picture

Findings from Arizona that illuminate patterns visible only when comparing across multiple states. These entries feed the project-wide Cross-State Intelligence Log and are written for state and national charter advocacy leaders.

The Jurisdictional Defense Playbook — AZ as a Test Case for Charter-as-Public-Employer Arguments

The CITY Center governing board's Littler Mendelson filing (January 2026) represents the most direct legal articulation of the "charter schools are public employers" argument in NLRB Region 28. NLRB Regional Director Overstreet's 24-page rejection (May 4, 2026) is the authoritative counter-ruling. This playbook — employer files RM petition claiming public employer status to oust NLRB jurisdiction — mirrors the LA Act 172 strategy (legislative jurisdiction-stripping). In AZ, the employer lost the jurisdictional battle at the regional level. This ruling strengthens NLRB jurisdiction arguments in AZ, NM, and other R28 states where the public-vs-private debate is contested.

AACTS as Single-State AFT Organizing Vehicle — Template or One-Off?

Arizona Alliance of Charter Teachers and Staff (AACTS/AFT Local 6627) is the sole organizing vehicle in the AZ charter sector, modeled similarly to DC-ACTS in DC and ChiACTS in IL — state-specific AFT charter affiliates with dedicated organizing capacity. AACTS achieved certification in 2023, a ratified contract in 2025, and has an election pending in 2026. This trajectory (1 → 4 certified schools in 3 years, if CITY Center succeeds) is consistent with the trajectory of ChiACTS in IL (which grew from a handful of certifications to 26 in the NAPCS dataset). AZ is 3-4 years behind IL in this pattern. If the CITY Center election succeeds and BASIS Goodyear follows, AACTS will have demonstrated the same multi-employer growth pattern.

Mission-Aligned Schools as First-Movers — AZ Confirms the National Pattern

All three NAPCS AZ schools in the ORGANIZING category share mission-distinctive profiles: City High (project-based, community-oriented, Title I), Paulo Freire Freedom School (social justice pedagogy, Paulo Freire namesake, environmental sustainability). These mirror the mission-alignment pattern documented across NY (bilingual/arts schools), MA (Montessori, performing arts), and LA (Morris Jeff, Bricolage). BASIS Tucson North is the outlier — a rigorous academic/test-prep school — but its organizing was employer-specific (financial transparency concerns, grievance process). The mission-alignment pattern holds strongest for CITY Center: the school community invoked the school's own mission language in organizing ("democratic decision-making," "community voice") as the organizing rationale.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

Arizona Luminaria (Shannon Conner, education solutions reporter) has been the primary outlet covering AZ charter school organizing. Coverage arc: December 2025 (City High / Paulo Freire announce union intent) → January 2026 (board files Littler Mendelson jurisdictional challenge) → February 2026 (rally, teachers say vote stalled) → May 4, 2026 (NLRB approves election). Tucson.com covered BASIS Tucson North CBA ratification (September 2025). National AFT press release (August 2025) covered contract ratification. Law360 (May 2026) reported NLRB regional director "approved a union vote at a network of AZ charter schools" — believed to refer to BASIS Goodyear RC petition approval.

Union Communications

AFT: Press release (August 2025) — AFT President Randi Weingarten quoted on BASIS Tucson North contract: "This contract will help educators in charters in Arizona and elsewhere to see how important it is to have a union." Justine Sleator (AACTS staff) is the public spokesperson for the CITY Center campaign. AACTS has not maintained a publicly accessible union website with organizing updates as of May 2026.

Employer / School Communications

BASIS Educational Group: No public statement found on CBA ratification. Ogletree Deakins represented but no public filings released. CITY Center governing board: Board president Gina Catalano did not respond to Arizona Luminaria press inquiries (January–February 2026). Board sent a February 13, 2026 letter to teachers stating: "We encourage and support teacher and staff voices, representation and participation in decision-making." Board retained Littler Mendelson without public

announcement. Legacy Traditional School and Pima Rose Academy: No public communications found related to open ULP cases.

Authorizer / State Agency Positions

Arizona State Board for Charter Schools (ASBCS) is the authorizer for all four NAPCS AZ schools. No ASBCS public statements found on charter school unionization. ASBCS is charter holder for CITY Center for Collaborative Learning (charter holder #302). No authorizer involvement in the organizing disputes documented.

Coalition / Advocacy Positions

Arizona Education Association (AEA) / Tucson Education Association (TEA): Cannot represent charter school teachers per their membership rules. AZ Luminaria noted that "Arizona charter teachers and staff cannot join another union, like the Tucson Education Association, because it does not allow charter members." This creates a monopoly for AACTS/AFT Local 6627 in the AZ charter organizing space.

Section 6: Contract & CBA Access Registry

NLRB Region 28 (Phoenix) public contracts portal. Direct PDF links may return 403 — OPRA or equivalent records request required for full text.

School / Network	Union	CBA Status & Term	Contract Access
BASIS Tucson North (C0412011)	AACTS / AFT Local 6627	CONFIRMED Ratified August 2025 (term unknown)	N/A
City High School (C0404006)	AACTS / AFT Local 6627 (pending)	PRE FIRST CONTRACT	N/A
Paulo Freire - Downtown (C0414026)	AACTS / AFT Local 6627 (pending)	PRE FIRST CONTRACT	N/A
Paulo Freire - University (C0405011)	AACTS / AFT Local 6627 (pending)	PRE FIRST CONTRACT	N/A

Section 7: Decisions, Monitoring & Notable Findings

Part A: Decisions Required

The following items require sponsor action before research or workbook entry can proceed.

No sponsor decisions pending for this state.

Part B: Notable Findings

Research findings of strategic significance. No immediate action required — for awareness and discussion.

No notable findings flagged for this state.

Part C: Active Monitoring

Items being tracked. Status may change between report cycles. Research Coordinator manages ongoing surveillance.

Priority	School / Scope	Item	Who
HIGH	City High / Paulo Freire (C0404006, C0414026, C0405011)	ELECTION WON May 19, 2026 (80% YES). Monitor NLRB R28 docket (case 28-RC-377822) for: (1) Formal Certification of Representative issuance (typically 7-10 days post-election absent objections); (2) Employer objection filing (deadline ~May 29, 2026); (3) First contract negotiations commencement. Once cert issued: update certCase to formal cert date, update all 3 school records, update dateUnionized, file AZ State Report v2.	Research Coordinator
HIGH	BASIS Goodyear (non-NAPCS)	RC petition approved per Law360 — monitor for election date and result. If certified: file Discovery Report for BASIS Goodyear as non-NAPCS find.	Research Coordinator
MEDIUM	Pima Rose Academy (non-NAPCS)	Open ULP 28-CA-385994 (April 2026). Monitor for RC petition filing.	Research Coordinator
MEDIUM	Legacy Traditional School - Goodyear (non-NAPCS)	Open ULP 28-CA-358360 (December 2024). Monitor for RC petition. Ogletree Deakins on defense.	Research Coordinator